Mideast Peace

IDF's Self-Serving Apologia for Its Callous, Deadly Treatment of Tomer Eiges

Richard Silverstein June 8, 2021

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Capt. Tomer Eiges z"l

Amid the torrent of leaks and reporting, public protests before its Kirya headquarters, and the dogged reporting here, the IDF has released its most extensive statement (Hebrew, Google Translate in English here) so far, about the death of Capt. Tomer Eiges, 25, in a military prison three weeks ago. The statement, clearly prepared by military lawyers and public affairs officers, to make the IDF look pure as driven snow, is a model of obfuscation and evasion. While it does offer new information and evidence about Eiges, most of it must be gleaned by reading between the lines, as is often the case with the military-intelligence apparatus.

Among the most important claims are that Eiges acted out of neither an ideological nor financial motive. In other words, he was not a whistleblower in the mode of Edward Snowden. Nor did he take money for the top secret information he compromised. That leaves only a single alternative: he unintentionally compromised the cyber-security of his unit either through mishandling documents, removing them from their secure location, or permitting them to be accessed by a third party who was not authorized to do so. He may have been lax in his own security; or perhaps was tricked by someone into permitting such access.

The biggest problem with this explanation is that his actions, if the damage was unintentional, in no way warranted a ten-year prison sentence, which the military prosecutor offered in a plea bargain. That length of time indicates a severe security breach and not one caused by an accident or mistake. So I'm not fully convinced of this scenario.

The statement confirms that Eiges was under special medical and psychiatric care. This confirms the report of a source here that he was depressed and taking an anti-depressant in prison. Given the report in HaMakom that Eiges fell severely ill in his cell in the evening, and began to foam at the mouth, this might indicate he took an overdose of one of his medications. If he hoarded his pills, this might be possible. An autopsy was performed and no immediate cause of death was determined. As I wrote, a blood panel was ordered. But strangely, three weeks after it was ordered, nothing has been said about the results. The Israeli public must demand answers to these questions.

As I wrote earlier, it's important to take much of what's claimed in this statement with an enormous grain of salt. To the IDF, lying is like breathing. Since it considers itself the guardian of the security of the nation, it will do anything necessary to advance this goal. Of course, it often confuses covering its own ass with upholding the nation's security. Certainly that's true in this case.

The statement claims conveniently that Eiges "cooperated with the investigation and confessed to many of the acts attributed to him." How convenient. If this is indeed the case, then he had a fool for a lawyer. Given that Eiges could not choose his own lawyer, but had to accept an attorney vetted by the IDF, this is quite possible.

Here is the military's account of Eiges' motivations:

> "He acted out of personal motives that were neither ideological, political or financial. He was not "run" by a foreign agent or in contact with enemy agents.

The IDF does admit, tangentially, to serious deficiencies in maintaining the operational security of Eiges' unit and in his treatment after he entered the prison:

> The investigation examined data control and supervision in his [Eiges'] unit, and similarly conducted a professional command investigation of the unit in order to learn the proper lessons [from the incident].

This is army-speak for "we know we fucked up, but we learned our lesson and won't do it again." Though the latter is doubtful, it is unusual for the IDF to admit fault in such circumstances. Emphasizing its level of concern, is that four days after his death it appointed a high-ranking officer to lead the investigation:

> The army personnel chief Gen. Yaniv Asor appointed a task force led by Brig. Gen. (ret.) Miki Lurya To conduct a wide-ranging and thorough investigation of the army's prison procedures. With an emphasis on how prisons treat inmates with *unique personality traits*.

The italicized phrase is another one of those mysterious military coinages which could mean many things. HaMakom noted that in his army evaluation he was given the highest possible marks for technical skills but very low marks for social skills. This immediately brought to mind someone who might be autistic. Those with such a diagnosis who are "twice exceptional," often possess precise this set of personality qualities Their cognitive gifts are extraordinary; but their ability to navigate normative human social intercourse is challenged. It's especially difficult for such people to navigate within large regimented organizations like the army or a prison. Could the prison system have grossly mistreated Eiges by not coping with some disability he had? As I wrote, the passage above implicitly acknowledges serious deficiencies in the way in which it treated Eiges during military service and while in prison custody. So this seems plausible.

Much of the release seeks to pre-emptively refute claims that might arise from the public, Tomer's family or the media about his treatment. In one section, it says that he was represented by a military lawyer "in accordance with his own choice after being advised by his family."

I'm no lawyer, but you tell me what man accused of espionage and facing ten years in prison voluntarily chooses a lawyer approved by the prosecution? As opposed to a lawyer independently chosen by the defendant? This is not JAG folks. These defense lawyers owe a debt to the army, not their client.

In the following passage, the IDF beggars belief when it says:

> After his indictment, the military court extended his incarceration till the end of the proceedings *with the full agreement* [of Eiges].

Whoever penned this jewel expects us to believe that Eiges, his attorney and parents willingly agreed to his imprisonment for the entire length of the legal proceedings against him? What do they take us for? Fools? Not to mention that it was very likely the nine months of imprisonment played some role in his death.

Here the IDF admits by inference that Eiges was under both physical and mental health treatment:

> As with all prisoners, he received ongoing medical treatment *accompanied by mental health personnel*.

Probably in response to coverage in HaMakom claiming Eiges was only permitted 20 minute visits with family every two weeks, the army offered this portrait of his visitation rights:

> The officer's family members visited him and had regular contact. He remained in contact with two of his friends. AMAN personnel visited him a number of times.

This account is rebutted by one of my sources and HaMakom. After he was kidnapped from a Tel Aviv street, Eiges disappeared for an entire week. Nor were his parents permitted to visit him at all until he had been Indicted. After that, they were permitted very brief visits either every week or every other week depending on which source you choose. I repeat, this sort of isolation breeds despair and depression. This is precisely what happened to Ben Zygier, who faced even worse conditions.

In the following passage, the IDF seeks to persuade us that Eiges voluntarily separated from the army in the months before his death. Again, this would make no sense. And if he was no longer in the military, the case should have been transferred from a military court to a civilian court. But it wasn't. In effect, the army wanted to have its cake and eat it too. It wanted to be rid of Eiges, but retain jurisdiction over his case. This is a gross violation of his human rights.

Note also, that removing him from the army meant that he could no longer be buried in a military cemetery. Yet another insult to his memory. The statement further defies belief when it claims that Eiges' parents were the ones who said they wanted him buried in a civilian cemetery. In fact, a number of Israeli media sources dispute this claim. And I believe them.

Listen to this dry accounting of the visit by Eiges' commanding officer to his parents home. This was clearly not a condolence call:

> A few days after his death, the deceased's commanding officer visited his parents and *related more details* about their son.

Really? "Details?" What sort of details? Did he relate to them the miserable manner of his death? Did he apologize for the way he was treated? Did he say he could have done more but didn't? What could he say to them?

The army contends that the parents were given a censored version of the indictment listing the charges against him. In fact, according to my source who is close to the family, the parents were given a one sentence statement that contained almost no information at all. If that's the case, you can see that "censored" meant that they removed any useful information that would permit the parents to understand the least bit about what their son was accused of.

Only now, after his death did the military authorities provide the parents a full uncensored version of the indictment. How kind of them to do so after he can no longer be tried on these charges. Of what use is this? Except in the event that they seek to sue the army for the tragedy it caused, which I hope they do.

There is another reason the IDF prepared this document. Benny Gantz, the defense minister, is on the hot seat. In fact, he made this mealy-mouthed statement which attempted to square the circle he finds himself in:

> …Gantz said…that the military would make an effort to find equilibrium between national security interests and transparency to the public following the officer's death…"This is an event with security implications. We will find a way to set the record straight," Gantz told his colleagues at the beginning of a faction meeting of his Blue & White party in Knesset. "I understand the feelings around such affairs that lack transparency, but we will work to improve this as much as possible within the limitations of security interests."

That and a few bucks will get you a cup of coffee. What a useless, clueless, heartless statement. But it does indicate that Gantz feels some pressure. And he should feel more. People should hold his feet to the fire till they burn.

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Silverstein is an independent journalist and has published Tikun Olam since 2003. It exposes the secrets of the Israeli national security state. He publishes regularly at Middle East Eye, the New Arab, and Jacobin Magazine. His work has also appeared in Al Jazeera English, The Nation, Truthout and other outlets.

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